

Evidence Code section 452(d)(1). A review of the register of actions and the files in this matter confirms that plaintiff Romon Calhoun commenced this limited jurisdiction action on December 17, 2020.

California Code of Civil Procedure section 583.310 provides that an action shall be brought to trial within five years after the action is commenced against the defendant. Accordingly, the five-year period for bringing this action to trial expires on December 17, 2025, the day of this hearing. The trial court lacks discretion to retain jurisdiction beyond this statutory period. As decisional authority makes clear, a trial court's discretion is not unlimited and must be exercised in conformity with the spirit of the law and in a manner to subserve, rather than impede or defeat, the ends of substantial justice. (*Coe v. City of Los Angeles* (1994) 24 Cal.App.4th 88.)

The five-year statutory period is subject to tolling where, for all practical purposes, going to trial would be impossible, whether due to a total lack of jurisdiction in the strict sense or because proceeding to trial would be both impracticable and futile. The purpose of the statute is to prevent avoidable delay for an undue period, not to arbitrarily close the proceedings at the expiration of five years in every case. Whether a proceeding is impossible, impracticable, or futile must be determined in light of all the circumstances of the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves. The critical factor in applying these exceptions to a given factual situation is whether the plaintiff exercised reasonable diligence in prosecuting his or her case. (*Hill v. Bingham* (1986) 181 Cal.App.3d 1.)

Here, the record is devoid of facts supporting reasonable diligence, tolling or extenuating circumstances that would justify the delays in bringing this case to trial. After reviewing plaintiff Romon Calhoun's 64-page declaration, the Court finds that while plaintiff was represented by counsel, he managed this litigation and exercised reasonable diligence in prosecuting his case. He filed an initial complaint, which was amended three times, and the parties engaged in discovery and motion practice over the last five years. The case was previously set for trial at least once by the Court. However, since plaintiff has proceeded as a self-represented litigant, he has failed to act with the requisite diligence in preparing this case for trial, beyond conducting some initial discovery. The record further suggests that plaintiff has not cooperated with discovery conducted by defendants, which prompted an additional discovery motion to be heard on December 17, 2025—the final day to bring this case to trial.

Plaintiff's contention that the COVID-19 pandemic warrants tolling is unavailing. Statewide court rules extended the time for trial by six months for actions filed before April 6, 2020. This action, filed on December 17, 2020, was not subject to that extension. Plaintiff also argues that the assignment of several different judges during the litigation contributed to the delays. However, a review of the record indicates that plaintiff was not diligent in pursuing a trial after its initial setting.

Based on the foregoing, the Court's tentative ruling is as follows: This action is **dismissed with prejudice pursuant** to California Code of Civil Procedure section 583.310. This order of dismissal is stayed pending the outcome of plaintiff's appeal currently pending before the Superior Court on the ruling denying his motion to reclassify this case.

2. 9:00 AM CASE NUMBER: C22-01214
CASE NAME: GABRIELA BENSON BODDEN VS. VIKTORIYA VOLZHENINA
HEARING ON ORDER OF EXAMINATION IN RE: AS TO VIKTORIYA VOLZHENINA APPLICATION AND
ORDER FOR EXAMINATION FILED BY GABRIELA BENSON BODDEN
FILED BY:

TENTATIVE RULING:

Both Parties / Counsel are ordered to appear for the hearing on Defendant Volzhenina's Motion to Set Aside Default, See Line 3 below. This order for examination shall trail the hearing on the Motion.

Law & Motion

3. 9:00 AM CASE NUMBER: C22-01214
CASE NAME: GABRIELA BENSON BODDEN VS. VIKTORIYA VOLZHENINA
HEARING IN RE: MOTION TO SET ASIDE DEFAULT JUDGMENT
FILED BY:

TENTATIVE RULING:

Defendant Viktoriya Volzhenina's motion to set aside the default and default judgment is **granted**, and her motion to quash service of summons and complaint is **granted**. The default entered on or about December 26, 2023 is set aside, the default judgment entered on May 22, 2025 is vacated, and service of the summons and First Amended Complaint on or about September 24, 2024 is quashed.

Background

This action arises from a landlord-tenant dispute brought by Plaintiffs Gabriela Benson Bodden and Jerlin Veliz Carcamo against Defendant Viktoriya Volzhenina, doing business as Bay Team Realty. Plaintiffs filed the complaint on June 14, 2022, alleging habitability violations, nuisance, retaliation, and related statutory claims concerning a rental property in Richmond, California. Defendant did not appear, and on Plaintiffs' application, the Court entered default judgment on May 22, 2025, awarding Plaintiffs \$1,510,283.12.

After filing the action, Plaintiffs attempted personal service on Defendant at an address identified by a private investigator as Defendant's residence at 575 Eddy Street, Apartment 208, San Francisco. Those attempts occurred in December 2022 and July 2023. Plaintiffs thereafter attempted substituted service at Defendant's workplace, the Judicial Council building located at 455 Golden Gate Avenue, San Francisco.

Defendant did not appear, default was entered, and default judgment followed in May 2025.

Defendant now moves to set aside the default and default judgment under CCP sections 473(d) and 473.5, asserting that the judgment is void due to defective service or, alternatively, that she lacked actual notice of the action in time to defend. Defendant contends that she was working remotely for the Judicial Council pursuant to a COVID-19 Remote Work Policy and had not been physically present at the 455 Golden Gate Avenue building for several years. On that basis, Defendant argues that the Judicial Council address was not her "usual place of business." Defendant further argues that substituted service on an unidentified "Secretary" in a large, multi-agency building does not comply